

It is important to observe that Stade's conclusion, denying woman her share in the ancient Hebrew cult, is not based upon any direct evidence derived from the Old Testament itself, but upon a remote and supposed analogy which connects a question of cult with that of the law of inheritance, and upon an utter disregard of all phenomena in the Old Testament that may point the other way.

The connection of the law of inheritance with the admission to the cult, and the explanation of the former from this source, are entirely forced and unsatisfactory. That the inheritance in old Israel was restricted to agnates is true enough (Nowack, *Arch.* i. 348 f.); but we may well ask whether there is not a simpler explanation of the fact. The weakness of Stade's position becomes very apparent when, in his attempt to support his view of the dependence of the right to inherit upon admission to the cult, he refers to Gen. 15^{2f.} as the solitary evidence. Now, the ancient custom that in default of a son the slave of the master becomes heir may prove that Abraham had no son, but how it can prove that Eliezer was the last representative of the family cult, save on the assumption of that which Stade endeavors to prove, I cannot see.

But the fact of woman's exclusion from the Hebrew laws of inheritance does not need explanation from her relation to the cult. There is a better way. W. Robertson Smith mentions a similar law among the Arabs. Smith shows that antique Arab society had its basis not in the patriarchal authority, the family, but in the stock or kinship tribe, an organization that has for its object offence and defence, and that the whole law of the old Arabs resolves itself into a law of war, in which blood-feud, blood-wite, and booty are the points on which everything turns. The law of inheritance there follows the law of booty. The tribe owned the property of which the individual had only a usufruct, and which fell to be divided after his death like the spoils of war. The right of inheritance belonged to the active members of the tribe. This explains the relation of woman to the law of inheritance, and is in accordance with the old law of Medina, quoted by Smith, in which women were excluded from inheritance on the principle that "none can be heirs who do not take part in battle, drive booty, and protect property." See W. R. Smith, *Kinship and Marriage*, pp. 33-58, and his note on "Law of Inheritance," p. 263.

Now, it is a well-recognized fact that the affinity in social organization and ancient law is far greater between the Arabs and the Hebrews than between the Semites and the Greeks and Romans. And so woman's exclusion from inheritance finds here, it seems to